

7. **Of submitting the estate to a re-sale.** — But the *cestui que trust*, particularly where the assignee in bankruptcy has become the purchaser, may claim, not a re-conveyance of the specific estate, but a *re-sale* of the property under the direction of the Court. The terms of the re-sale have not always been uniform. In *Whelpdale v. Cookson* (*g*), Lord Hardwicke said the majority of the creditors should *elect* whether the purchase should stand; so that should they elect to re-sell, and the estate should be sold at a still lower price, the creditors would suffer. The doctrine of Lord Thurlow appears to have been, that the property should be put up at the price at which the trustee purchased, and if any advance was made, the sale should take effect, *but [*493] if no bidding, the trustee should be held to his bargain (*a*). Lord Alvanley followed the authority of Lord Hardwicke, and directed an enquiry whether it was for the benefit of the infants that the premises should be re-sold, and, if for their benefit, that the sale should be made (*b*). “To this principle,” said Lord Eldon, “the objection is that a great temptation to purchase is offered to trustees, the question whether the re-sale would be advantageous to the *cestui que trust* being of necessity determined at the hazard of a wrong determination” (*c*). Lord Eldon therefore conceived it best to adopt the rule of Lord Thurlow, and so he decreed in *Ex parte Hughes* (*d*), and *Ex parte Lacey* (*e*). Sir W. Grant, in a subsequent case (*f*), said he was not aware that Lord Eldon had laid down any general rule as to the terms; but a few days after, having consulted the Lord Chancellor upon the subject, and discovering his mistake, he framed his decree in conformity with the Lord Chancellor’s decisions. The same principle has since been followed in numerous other cases (*g*), and the practice may be considered as settled.

(*g*) Cited *Campbell v. Walker*, 5 Ves. 682.

(*a*) See *Lister v. Lister*, 6 Ves. 633; *Ex parte James*, 8 Ves. 351.

(*b*) *Campbell v. Walker*, 5 Ves. 678, see 682.

(*c*) *Sanderson v. Walker*, 13 Ves. 603.

(*d*) 6 Ves. 617.

(*e*) *Id.* 625; and see *Ex parte Reynolds*, 5 Ves. 707.

(*f*) *Lister v. Lister*, 6 Ves. 633.

(*g*) *Ex parte James*, 8 Ves. 337; *Ex parte Bennett*, 10 Ves. 381; *Robinson v. Ridley*, 6 Mad. 2.